

HOUSE BILL No. 1313

DIGEST OF INTRODUCED BILL

Citations Affected: IC 20-26-5-48; IC 20-28-9-18; IC 20-29; IC 20-30-2; IC 21-39-11; IC 22-2-6-2.

Synopsis: Education matters. Prohibits a school corporation, public school, governing body of a school corporation, or state educational institution from spending public funds to: (1) hire or contract with, for the purpose of lobbying a member of the general assembly, a person required to register as a lobbyist; or (2) pay a nonprofit association or organization that: (A) primarily represents school corporations, public schools, governing bodies, or state educational institutions; and (B) hires or contracts with a person required to register as a lobbyist. Provides that a taxpayer or resident of Indiana may bring a civil action for a violation of the prohibited conduct. Provides that a school corporation may not convert a scheduled instructional day to virtual instruction because of the planned or coordinated absence of teachers or other personnel for the purpose of participating in a protest, demonstration, or political advocacy event. Provides that a school corporation that violates this provision is subject to a reduction in state tuition support for each day of violation. Provides that a school employer may not deduct any dues, fee, assessment, or other sum of money from the wages or other earnings of an employee to hold for or pay to a school employee organization. Repeals provisions regarding certain deductions of dues from pay by school employers.

Effective: July 1, 2026.

Ireland

January 6, 2026, read first time and referred to Committee on Education.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1313

A BILL FOR AN ACT to amend the Indiana Code concerning education.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 20-26-5-48 IS ADDED TO THE INDIANA CODE
- 2 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
- 3 1, 2026]: **Sec. 48. (a) As used in this section, "lobbyist" has the**
- 4 **meaning set forth in IC 2-7-1-10.**
- 5 **(b) As used in this section, "public school" does not include a**
- 6 **charter school.**
- 7 **(c) A school corporation, public school, or governing body of a**
- 8 **school corporation may not spend public funds to:**
- 9 **(1) hire or contract with, for the purpose of lobbying a**
- 10 **member of the general assembly, a person required to register**
- 11 **as a lobbyist under IC 2-7-2; or**
- 12 **(2) pay a nonprofit association or organization that:**
- 13 **(A) primarily represents school corporations, public**
- 14 **schools, or governing bodies; and**
- 15 **(B) hires or contracts with a person required to register as**
- 16 **a lobbyist under IC 2-7-2.**
- 17 **(d) Nothing in this section may be construed to prohibit the**



following:

(1) An employee of a school corporation or public school or a member of a governing body from providing information for a member of the general assembly or appearing before a committee of the general assembly.

(2) An employee or member described in subdivision (1) from advocating for or against or otherwise influencing or attempting to influence the outcome of legislation pending before the general assembly if the actions would not require a person to register as a lobbyist under IC 2-7-2.

(3) A school corporation or public school from reimbursing a full-time employee or member of the governing body for direct travel expenses incurred by the employee or member for engaging in an activity described in subdivision (1) or (2).

(4) A full-time employee of a nonprofit association or organization that primarily represents school corporations, public schools, or governing bodies from:

(A) providing legislative services related to bill tracking, bill analysis, and legislative alerts;

(B) communicating directly with a member of the general assembly to provide information if the communication would not require a person to register as a lobbyist under IC 2-7-2; or

(C) testifying for or against legislation before the general assembly.

(e) If a school corporation, public school, or governing body of a school corporation violates this section, a taxpayer or resident of Indiana may bring a civil action against the school corporation, public school, or governing body.

(f) The court may award to a taxpayer or resident of Indiana who prevails in an action under subsection (e) the following:

(1) Injunctive relief.

(2) Costs and reasonable attorney's fees.

SECTION 2. IC 20-28-9-18, AS ADDED BY P.L.1-2005, SECTION 12, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 18. (a) Upon a teacher's written request, a governing body shall withhold the requested amount of money from the salary of the teacher for a purpose described in subsection (c).

(b) Upon a written request from a beneficiary of the Indiana state teachers' retirement fund, a governing body may receive a given amount of money for a purpose described in subsection (c).

(c) Except as provided under IC 20-29-5-6.5, the governing body



shall hold the amounts described in subsections (a) and (b) and pay the amounts, as requested by the teacher or the beneficiary, to an insurance company or other agency or organization in Indiana that provides, extends, supervises, or pays for:

- (1) insurance or other protection; or
- (2) the establishment of or payment on an annuity account; for the teacher. If a dividend accrues on a policy, the dividend shall be paid or credited to the teacher.

(d) **Except as provided under IC 20-29-5-6.5**, if less than twenty percent (20%) of the teachers employed by a governing body request payment of the amounts described in subsection (c) to a single recipient, withholding the amounts of money for insurance, dues, or other purposes is discretionary with the governing body.

SECTION 3. IC 20-29-5-6 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 6: (a) ~~Subject to subsection (c); the school employer shall; on receipt of the written authorization of a school employee:~~

- (1) ~~deduct from the pay of the employee any dues designated or certified by the appropriate officer of a school employee organization that is an exclusive representative of any employees of the school employer; and~~
- (2) ~~remit the dues described in subdivision (1) to the school employee organization.~~

(b) ~~Deductions under this section must be consistent with:~~

- (1) ~~IC 22-2-6;~~
- (2) ~~IC 22-2-7; and~~
- (3) ~~IC 20-28-9-18.~~

(c) ~~The following apply to a deduction authorization by a school employee under subsection (a) or when a school employer agrees with a school employee organization to deduct school organization dues from a school employee's pay:~~

- (1) ~~A school employee has the right to resign from; and end any financial obligation to; a school employee organization at any time. The right described in this subdivision may not be waived by the school employee.~~
- (2) ~~The authorization for withholding form shall include the school employee's full name, position, school employee organization; and signature and shall be submitted directly to the school employer by the school employee. After receiving the authorization for withholding form, the school employer shall confirm the authorization by sending an electronic mail message to the school employee at the school employee's school provided work electronic mail address and shall wait for confirmation of~~



the authorization before starting any deduction. If the school employee does not possess a school provided work electronic mail address, the school employer may use other means it deems appropriate to confirm the authorization.

(3) An authorization for school employee organization dues to be deducted from school employee pay shall be on a form prescribed by the attorney general, in consultation with the board, and shall contain a statement in 14 point type boldface font reading: "The State of Indiana wishes to make you aware that you have a First Amendment right, as recognized by the United States Supreme Court, to refrain from joining and paying dues to a union (school employee organization). Your membership and payment of dues are voluntary, and you may not be discriminated against for your refusal to join or financially support a union. By signing this form, you are agreeing to authorize your employer to deduct union dues from your salary in the amounts specified in accordance with your union's bylaws. You may revoke this authorization at any time."

(4) Authorizations by a school employee for the withholding of school employee organization dues from the school employee's pay shall not exceed one (1) year in duration and shall be subject to annual renewal.

(5) Upon the submission of a written or electronic mail request to a school employer, a school employee shall have the right to cease the withholding of school employee organization dues from their pay. Upon receipt of a request, the school employer shall:

(A) cease the withholding of school employee organization dues from the school employee's pay beginning on the first day of the employee's next pay period; and

(B) provide written or electronic mail notification of the school employee's decision to the school employee organization.

The notification in clause (B) must occur within a reasonable time to ensure that the school employee is not required to have dues withheld during the school employee's next pay period or any subsequent pay period.

(6) A school employer shall annually provide, at a time the school employer prescribes, written or electronic mail notification to its school employees of their right to cease payment of school employee organization dues and to withdraw from that organization. The notification must also include the following:

(A) The authorization form described in subsection (c)(3);

(B) The amount of dues that the school employee will be liable to pay to the school organization during the duration of the



1 authorization, if the employee does not revoke the
2 authorization before it expires:

3 (d) On or before July 1, 2021, and not later than July 30 of each year
4 thereafter, the attorney general, in consultation with the board and the
5 department, must notify all school employers of the provisions
6 described in subsection (c). This notice must include the authorization
7 form described in subsection (c)(3):

8 (e) Subsection (c)(3) does not apply to a collective bargaining
9 agreement or any other contract entered into or renewed before July 1,
10 2022. However, subsection (c)(3) applies to any collective bargaining
11 agreement or contract entered into, renewed, modified, extended, or
12 amended after June 30, 2022:

13 SECTION 4. IC 20-29-5-6.5 IS ADDED TO THE INDIANA CODE
14 AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
15 1, 2026]: **Sec. 6.5. (a) A school employer may not deduct any dues,
16 fees, assessment, or other sum of money from the wages or other
17 earnings of an employee to hold for or pay to a school employee
18 organization.**

19 **(b) Nothing in this section may be construed to impair a
20 collective bargaining agreement or any other contract entered into
21 or renewed before July 1, 2026. However, this section applies to
22 any collective bargaining agreement or contract entered into,
23 renewed, modified, extended, or amended after June 30, 2026.**

24 SECTION 5. IC 20-29-9-3 IS REPEALED [EFFECTIVE JULY 1,
25 2026]. **Sec. 3: If an exclusive representative:**

26 **(1) engages in; or**

27 **(2) aids or abets in;**

28 **a strike, the exclusive representative shall lose the exclusive
29 representative's dues deduction privilege for one (1) year:**

30 SECTION 6. IC 20-30-2-2.7, AS ADDED BY P.L.139-2022,
31 SECTION 13, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
32 JULY 1, 2026]: **Sec. 2.7. (a) This section applies to the following:**

33 **(1) Except as provided in subsection (b), a public school
34 maintained by a school corporation.**

35 **(2) A charter school that is not a virtual charter school (as defined
36 in IC 20-24-1-10).**

37 **(b) This section does not apply to a dedicated virtual education
38 school.**

39 **(c) As used in this section, "virtual student instructional day" means
40 a student instructional day to which the following apply:**

41 **(1) A school provides virtual instruction or remote learning to at
42 least fifty percent (50%) of the students enrolled to attend**



1 in-person instruction at the school.

2 (2) A school counts the student instructional day toward meeting
3 the one hundred eighty (180) day requirement established by
4 section 3 of this chapter.

5 (d) Except as provided in subsections (e) and ~~(g)~~; **(h)**, a school shall
6 deliver:

7 (1) teacher directed synchronous instruction; or

8 (2) a hybrid of:

9 (A) teacher directed synchronous instruction for at least fifty
10 percent (50%) of the particular instructional day; and

11 (B) asynchronous learning;

12 during the instructional time of a virtual student instructional day.

13 (e) Except as provided in subsection ~~(g)~~; **(h)**, a school may conduct
14 not more than three (3) virtual student instructional days each school
15 year that do not meet the requirements under subsection (d).

16 (f) Except as provided in subsection ~~(g)~~; **(h)**, if a school conducts a
17 student instructional day described in subsection (c)(1) that does not
18 meet the requirements of this section, the school may not count the
19 student instructional day toward meeting the one hundred eighty (180)
20 day requirement established by section 3 of this chapter.

21 **(g) A school corporation may not convert a scheduled**
22 **instructional day to virtual instruction under this section because**
23 **of the planned or coordinated absence of teachers or other**
24 **personnel for the purpose of participating in a protest,**
25 **demonstration, or political advocacy event.**

26 ~~(g)~~ **(h)** A school may submit to the department a request to waive
27 the requirements set forth in this section to include a virtual student
28 instructional day otherwise excluded under subsection (f) to meet the
29 one hundred eighty (180) day requirement established by section 3 of
30 this chapter if the virtual student instructional day was conducted
31 because of extraordinary circumstances. The department may waive the
32 requirements for the school after consideration of the request.

33 ~~(h)~~ **(i)** The state board may adopt rules under IC 4-22-2 to
34 implement this section. However, the state board shall, in consultation
35 with the department, adopt rules under IC 4-22-2 that define teacher
36 directed synchronous instruction and asynchronous learning and
37 provide that the instruction or learning must be of the same quality and
38 rigor as required under section 2.5(b) of this chapter.

39 SECTION 7. IC 20-30-2-4, AS AMENDED BY P.L.178-2022(ts),
40 SECTION 14, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
41 JULY 1, 2026]: Sec. 4. (a) Subject to subsection (c), if a school
42 corporation fails to conduct the minimum number of student



1 instructional days during a school year as required under section 3 of
 2 this chapter, the department shall reduce the August tuition support
 3 distribution to that school corporation for a school year by an amount
 4 determined as follows:

5 STEP ONE: Determine the remainder of:

6 (A) the amount of the total tuition support allocated to the
 7 school corporation for the particular school year; minus

8 (B) that part of the total tuition support allocated to the school
 9 corporation for that school year with respect to student
 10 instructional days one hundred seventy-six (176) through one
 11 hundred eighty (180).

12 STEP TWO: Subtract the number of student instructional days
 13 that the school corporation conducted from one hundred eighty
 14 (180).

15 STEP THREE: Determine the lesser of five (5) or the remainder
 16 determined under STEP TWO.

17 STEP FOUR: Divide the amount subtracted under STEP ONE (B)
 18 by five (5).

19 STEP FIVE: Multiply the quotient determined under STEP FOUR
 20 by the number determined under STEP THREE.

21 STEP SIX: Subtract the number determined under STEP THREE
 22 from the remainder determined under STEP TWO.

23 STEP SEVEN: Divide the remainder determined under STEP
 24 ONE by one hundred seventy-five (175).

25 STEP EIGHT: Multiply the quotient determined under STEP
 26 SEVEN by the remainder determined under STEP SIX.

27 STEP NINE: Add the product determined under STEP FIVE to
 28 the product determined under STEP EIGHT.

29 (b) If the total amount of state tuition support that a school
 30 corporation receives or will receive during a school year decreases
 31 under this section by an amount that is equal to or more than two
 32 hundred fifty thousand dollars (\$250,000) from the amount the school
 33 corporation would otherwise be eligible to receive during the school
 34 year as determined under IC 20-43, the budget committee shall review
 35 the amount of and the reason for the decrease before implementation
 36 of the decrease.

37 (c) If fewer than all of the schools in a school corporation fail to
 38 conduct the minimum number of student instructional days during a
 39 school year as required under section 3 of this chapter, the reduction in
 40 August tuition support required by this section shall take into account
 41 only the schools in the school corporation that failed to conduct the
 42 minimum number of student instructional days and only the grades for



1 which the required number of student instructional days was not
2 conducted.

3 **(d) A school corporation that violates section 2.7(g) of this**
4 **chapter is subject to a reduction in state tuition support under**
5 **subsection (a) for each day of violation.**

6 SECTION 8. IC 21-39-11 IS ADDED TO THE INDIANA CODE
7 AS A NEW CHAPTER TO READ AS FOLLOWS [EFFECTIVE
8 JULY 1, 2026]:

9 **Chapter 11. Use of Public Funds for Lobbying the General**
10 **Assembly Prohibited**

11 **Sec. 1. As used in this chapter, "lobbyist" has the meaning set**
12 **forth in IC 2-7-1-10.**

13 **Sec. 2. A state educational institution or board of trustees may**
14 **not spend public funds to:**

15 **(1) hire or contract with, for the purpose of lobbying a**
16 **member of the general assembly, a person required to register**
17 **as a lobbyist under IC 2-7-2; or**

18 **(2) pay a nonprofit association or organization that:**

19 **(A) primarily represents state educational institutions or**
20 **boards of trustees; and**

21 **(B) hires or contracts with a person required to register as**
22 **a lobbyist under IC 2-7-2.**

23 **Sec. 3. Nothing in this chapter may be construed to prohibit the**
24 **following:**

25 **(1) An employee of a state educational institution or a**
26 **member of a board of trustees from providing information for**
27 **a member of the general assembly or appearing before a**
28 **committee of the general assembly.**

29 **(2) An employee or member described in subdivision (1) from**
30 **advocating for or against or otherwise influencing or**
31 **attempting to influence the outcome of legislation pending**
32 **before the general assembly if the actions would not require**
33 **a person to register as a lobbyist under IC 2-7-2.**

34 **(3) A state educational institution from reimbursing a**
35 **full-time employee or a member of the board of trustees for**
36 **direct travel expenses incurred by the employee or member**
37 **for engaging in an activity described in subdivision (1) or (2).**

38 **(4) A full-time employee of a nonprofit association or**
39 **organization that primarily represents state educational**
40 **institutions or boards of trustees from:**

41 **(A) providing legislative services related to bill tracking,**
42 **bill analysis, and legislative alerts;**



(B) communicating directly with a member of the general assembly to provide information if the communication would not require a person to register as a lobbyist under IC 2-7-2; or

(C) testifying for or against legislation before the general assembly.

Sec. 4. (a) If a state educational institution or board of trustees violates this chapter, a taxpayer or resident of Indiana may bring a civil action against the state educational institution or board of trustees.

(b) The court may award to a taxpayer or resident of Indiana who prevails in an action under subsection (a) the following:

(1) Injunctive relief.

(2) Costs and reasonable attorney's fees.

SECTION 9. IC 22-2-6-2, AS AMENDED BY P.L.147-2019, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) Any assignment of the wages of an employee is valid only if all of the following conditions are satisfied:

(1) The assignment is:

(A) in writing;

(B) signed by the employee personally;

(C) by its terms revocable at any time by the employee upon written notice to the employer; and

(D) agreed to in writing by the employer.

(2) An executed copy of the assignment is delivered to the employer within ten (10) days after its execution.

(3) The assignment is made for a purpose described in subsection (b).

(b) A wage assignment under this section may be made for the purpose of paying any of the following:

(1) Premium on a policy of insurance obtained for the employee by the employer.

(2) Pledge or contribution of the employee to a charitable or nonprofit organization.

(3) Purchase price of bonds or securities, issued or guaranteed by the United States.

(4) Purchase price of shares of stock, or fractional interests in shares of stock, of the employing company, or of a company owning the majority of the issued and outstanding stock of the employing company, whether purchased from such company, in the open market or otherwise. However, if such shares are to be purchased on installments pursuant to a written purchase



1 agreement, the employee has the right under the purchase
 2 agreement at any time before completing purchase of such shares
 3 to cancel said agreement and to have repaid promptly the amount
 4 of all installment payments which theretofore have been made.

5 (5) **Except as provided under IC 20-29-5-6.5**, dues to become
 6 owing by the employee to a labor organization of which the
 7 employee is a member.

8 (6) Purchase price of merchandise, goods, or food offered by the
 9 employer and sold to the employee, for the employee's benefit,
 10 use, or consumption, at the written request of the employee.

11 (7) Amount of a loan made to the employee by the employer and
 12 evidenced by a written instrument executed by the employee
 13 subject to the amount limits set forth in section 4(c) of this
 14 chapter.

15 (8) Contributions, assessments, or dues of the employee to a
 16 hospital service or a surgical or medical expense plan or to an
 17 employees' association, trust, or plan existing for the purpose of
 18 paying pensions or other benefits to said employee or to others
 19 designated by the employee.

20 (9) Payment to any credit union, nonprofit organizations, or
 21 associations of employees of such employer organized under any
 22 law of this state or of the United States.

23 (10) Payment to any person or organization regulated under the
 24 Uniform Consumer Credit Code (IC 24-4.5) for deposit or credit
 25 to the employee's account by electronic transfer or as otherwise
 26 designated by the employee.

27 (11) Premiums on policies of insurance and annuities purchased
 28 by the employee on the employee's life.

29 (12) The purchase price of shares or fractional interest in shares
 30 in one (1) or more mutual funds.

31 (13) A judgment owed by the employee if the payment:

32 (A) is made in accordance with an agreement between the
 33 employee and the creditor; and

34 (B) is not a garnishment under IC 34-25-3.

35 (14) The purchase, rental, or use of uniforms, shirts, pants, or
 36 other ~~job-related~~ **job related** clothing at an amount not to exceed
 37 the direct cost paid by an employer to an external vendor for those
 38 items.

39 (15) The purchase of equipment or tools necessary to fulfill the
 40 duties of employment at an amount not to exceed the direct cost
 41 paid by an employer to an external vendor for those items.

42 (16) Reimbursement for education or employee skills training.



1 However, a wage assignment may not be made if the education or
 2 employee skills training benefits were provided, in whole or in
 3 part, through an economic development incentive from any
 4 federal, state, or local program.

5 (17) An advance for:

6 (A) payroll; or

7 (B) vacation;

8 pay.

9 (18) The employee's drug education and addiction treatment
 10 services under IC 12-23-23.

11 (c) The interest rate charged on amounts loaned or advanced to an
 12 employee and repaid under subsection (b) may not exceed the bank
 13 prime loan interest rate as reported by the Board of Governors of the
 14 Federal Reserve System or any successor rate, plus four percent (4%).

15 (d) The total amount of wages subject to assignment under
 16 subsection (b)(14) and (b)(15) may not exceed the lesser of:

17 (1) two thousand five hundred dollars (\$2,500) per year; or

18 (2) five percent (5%) of the employee's weekly disposable
 19 earnings (as defined in IC 24-4.5-5-105(1)(a)).

20 (e) Except as provided under 29 CFR Parts 1910, 1915, 1917, 1918,
 21 and 1926, an employee shall not be charged or subject to a wage
 22 assignment under subsection (b)(14) or (b)(15) for protective
 23 equipment including personal protective equipment identified under 29
 24 CFR Parts 1910, 1915, 1917, 1918, and 1926.

